

ORDER SHEET
LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

W.P. No.7251 of 2026

Syed Wasi Haider **Versus** City Police Officer, etc.

S. No. of order/ Proceedings	Date of order/ Proceedings	Order with signature of Judge, and that of parties of counsel, where necessary.
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19.06.2026

Mr. Muhammad Yafis Naveed Hashmi, Advocate for
the petitioner.
Mr. Arshad Pervaiz Qureshi, Assistant Advocate
General, Punjab with Tehseen, Inspector.

Once again, a humble citizen of Pakistan, bound by faith and devotion, approaches this Court with an earnest plea: to be granted the liberty of observing the sacred rites of Muharram, wherein grief and anguish are poured forth over the unjust martyrdom of Hazrat Imam Hussain (Alayhis-Salam). This tragedy, unparalleled in the annals of history, is not merely a sectarian remembrance but a universal cry for justice, truth, and humanity. Time and again, the superior courts of this land have declared with clarity that for assemblies, gatherings, Majalis, or processions held in commemoration of this holy sacrifice, no prior permission is required. Yet, with each passing year, officers vested with authority reduce this solemn matter to a trivial exercise, treating applications as if they were of ordinary worth, subjecting them to the whims of refusal or acceptance under the pretext of “law and order.” Such conduct not only diminishes the sanctity of the occasion but also disregards the constitutional guarantees bestowed upon every citizen. The mourning of Karbala is not a disturbance to public peace; it is a beacon of resistance against tyranny, a reminder that truth must prevail even when confronted with oppression. To obstruct or belittle this observance is to deny the very spirit of sacrifice that Hazrat Imam Hussain embodied, a sacrifice that continues to illuminate

the conscience of humanity. What the petitioner actually prayed for is as under;

In view of above submissions, it is most respectfully prayed that by accepting this writ petition, respondent No.1 may kindly be ordered to register the procession and provide security for the Majlis/procession of the petitioner to be held on 8th Muharram as per previous schedule and to include the aforesaid procession in Annual Security Schedule/Book of District Police.

2. Learned counsel for the petitioner earnestly contended that a procession, steeped in tradition and sanctified by time, has been led by the petitioner's community on the 8th of Muharram each year through Imambargah Jannat-ul-Baqi situated at Rajapur Multan. The petitioner now voices grave apprehension that this solemn procession may be obstructed or curtailed by the respondents through unlawful interference. It is further lamented that the respondents, in disregard of their constitutional obligations, have neither incorporated the procession into their security plan nor undertaken any measures to safeguard its peaceful observance. Further submits that, although Article 120 of the Police Order, 2002 contemplates an application for a licence to lead a procession on the eve of Yom-e-Ashoor, such licence is to be granted by the Head of Police of the district, and not by the Home Department as erroneously suggested by the respondents. He emphasizes that the prerogative to grant or refuse such licence rests exclusively with the police authorities, and even then, the law mandates that reasons must be recorded for any refusal.

3. Learned counsel further points out that applications regularly moved by the petitioner on a yearly basis, addressed to the head of district police, were duly honoured in the past; yet, on this occasion, the same is being disregarded for reasons best known to the district administration. He contends that, even if a licence is deemed necessary, the petitioner stands ready to submit an application before the police authorities and seek permission from the Deputy Commissioner under Section 16 of the Punjab

Civil Administration Act, 2017. However, owing to the brevity of time, the petitioner fears that by the time such application is filed, processed, and decided, the sacred occasion itself may lapse. Therefore, he prays that permission be graciously accorded to lead the procession on the 8th of Muharram, and the City Police Officer as well as the Deputy Commissioner be directed to extend requisite security arrangements. He assures that volunteers from within the petitioner's own community shall be provided to assist the police in maintaining order. Counsel further submits that any reasonable restrictions imposed by the authorities for the preservation of law and order shall be scrupulously observed by the petitioner. His plea finds support in a line of judicial precedents, which he respectfully invokes in aid of his contentions.

“Malik GHULAM YUSAF versus PISTRIC MAGISTRATE, ATTOCK” (1995 MLD 1510), “MUHAMMAD HUSSAIN BHATTI versus DISTRICT MAGISTRATE, GUJRAT” (1985 P Cr. L J 301), “KANEEZ FATIMA versus DISTRICT MAGISTRATE, SIALKOT and others” (1985 P Cr. L J 2707), “Syed SARFRAZ HUSSAIN BOKHARI versus DISTRICT MAGISTRATE, KASUR AND OTHERS” (PLD 1983 Supreme Court 172), “SHARAFAT HUSSAIN versus DEPUTY COMMISSIONER, KASUR AND ANOTHER” (1983 P Cr.L J 1485), “Mst. FAIZ MAI versus HOME SECRETARY and others” (PLD 2017 Lahore 896), “Syed MANZOOR HUSSAIN SHAH versus GOVERNMENT of N.-W.F.P. through Collector, Dera Ismail Khan and others” (2005 SCMR 995), “SAIF ALI versus DEPUTY COMMISSIONER, LAHORE and others” (2026 P Cr. L J 413) Judgment approved for reporting by this Court titled “Bilal Hussain versus Home Secretary, Govt. of Punjab, Lahore & others” (2025 LHC 8288): Order dated 04.07.2025 passed in W.P. No.7793 of 2025 titled “Nasir Abbas Shah versus DPO etc.”: Judgment approved for reporting by this Court titled “Manzoor Hussain versus Govt. of Punjab through Chief Secretary, Punjab Lahore etc.” (2021 LHC 3498).

4. Heard. Record perused.

5. The principal issue arising in this petition is the determination of the competent authority empowered to grant a licence for the conduct of an assembly, gathering, or procession upon a public road, street, or thoroughfare. Historically, the

prevailing practice vested such authority in the Home Department, acting upon the recommendations of District Intelligence Committees constituted under its aegis. With the advent of the Police Order, 2002, however, the Police Department emerged as an autonomous institution, its administration entrusted to the Provincial Police Officer and other authorities established therein. Consequently, in matters expressly regulated by law, the police administration no longer functions under the direct command of the Home Department. The legislative landscape has since been further enriched by the enactment of the Punjab Special Protection Unit Act, 2016, which empowers police authorities to provide security to individuals, foreigners, dignitaries, and notified premises. This enactment operates in harmony with Article 120 of the Police Order, 2002. Likewise, the Punjab Civil Administration Act, 2017 confers upon the Deputy Commissioner the independent authority to manage district affairs and regulate matters within his statutory domain, including the grant of permission for assemblies, gatherings, and processions in accordance with law. In the presence of these three enactments, the Court is called upon to resolve two pivotal questions:

1. **Licence for private Majlis** — Whether any licence or permission is required for conducting a Majlis, assembly, or gathering within the confines of a private home.
2. **Authority over public processions** — Whether assemblies, Majalis, gatherings, or processions conducted upon public roads, streets, or thoroughfares are to be regulated through licences and permissions issued by district-level authorities, or whether the Home Department continues to retain any residual authority to intervene in such matters.

6. Article 120 of the Police Order, 2002 finds its operation only where one seeks to assemble the public or to lead a procession upon public roads, streets, or thoroughfares for a lawful purpose, be it the demonstration of an issue or the performance of a religious rite. Conversely, for assemblies, gatherings, or Majalis held within the sanctity of four walls, the

law imposes no requirement to obtain a licence or formal permission from either the District Police Officer or the Deputy Commissioner. What is required, however, is that the organizers inform the authorities and seek police assistance to ensure the safety of participants. In such circumstances, the police or the Deputy Commissioner may undertake a threat assessment to determine the quantum of security necessary, or to suggest an alternate venue, date, or time in the interest of public safety. Yet, where violations of law occur, whether through incendiary speeches or unlawful acts committed during such assemblies, gatherings, or Majalis, the police and the Deputy Commissioner remain fully competent to initiate appropriate legal proceedings against the delinquents. Thus, the balance between freedom of assembly and the preservation of order is delicately maintained, ensuring both the sanctity of tradition and the supremacy of law.

7. Having settled the first question, I now turn to the second, which concerns the leading of processions or the holding of Majalis, assemblies, and gatherings upon public roads, streets, and thoroughfares. In this respect Article 120 of Police Order 2002 (which is identical to section 30 of Police Act 1861) is reproduced as under;

120. Regulation of public assemblies and processions and licensing of same.— (1) Head of District Police or Assistant or Deputy Superintendent of Police may as occasion require, direct the conduct of assemblies and processions on public roads, or in public streets or thoroughfares and prescribe the routes by which and the times at which, such processions may pass.

(2) He may also, on being satisfied that it is intended by any persons or class of persons to convene or collect any assembly in any such road, street or thoroughfare, or to form a procession which would, in his judgement, if uncontrolled, be likely to cause a breach of the peace, require by general or special notice that the persons convening or collecting such assembly or directing or promoting such processions shall apply for a licence.

(3) On such application being made, he may issue a licence specifying the names of the licensees and defining the conditions on which alone such assembly or such procession is to be permitted to take place and otherwise giving effect to this Article:

Provided that no fee shall be charged on the application for, or grant of any such licence.

From the tenor of the Article, it becomes manifest that, in the ordinary course, no licence is demanded for the taking out of a procession. The requirement of a licence arises only in those exceptional circumstances where the Head of Police, or such other officer as designated, being duly satisfied that a procession, if left uncontrolled, is likely in his judgment to occasion a breach of the peace, may by general or special proclamation direct that the conveners, organizers, or promoters of such assembly shall first seek the sanction of a licence before proceeding. Reliance in this respect is placed on a case reported as “SHARAFAT HUSSAIN Versus DEPUTY COMMISSIONER, KASUR AND ANOTHER” (1983 P Cr. L J 1485). Similarly, Section 16 of the Punjab Civil Administration Act, 2017 provides as follows;

16. Public processions etc.– (1) No public meeting, procession, assembly or gathering shall take place without prior permission in writing of the Deputy Commissioner.

(2) On receipt of an application for the purpose, the Deputy Commissioner, in consultation with the head of District Police, may grant permission subject to such terms and conditions as he deems fit or reject the application after recording reasons.

(3) The Deputy Commissioner may, in consultation with the head of the respective local government, requisition such assistance of the local government as may be necessary in the circumstances.

The provisions of Article 120 of the Police Order, 2002, read conjointly with Section 16 of the Punjab Civil Administration Act, 2017, unequivocally require the obtaining of a licence from the Head of Police in the district and permission from the Deputy Commissioner concerned. Each of these authorities is empowered to act independently within their respective spheres, free from any direction or interference by the Home Department. In the event of violation, Articles 121 and 122 of the Police Order, 2002, together with Section 16 of the Punjab Civil Administration Act, 2017, prescribe the course of action to be taken against the delinquents. It is noteworthy that Article 119 of

the Police Order, 2002, further provides that, subject to rules, a police officer not below the rank of Sub-Inspector may issue such directions as may be deemed necessary to regulate and safeguard the conduct of such assemblies and processions. Thus, the statutory framework delineates a clear division of authority: the Police and the Deputy Commissioner stand as the lawful custodians of order in public assemblies, while the Home Department no longer retains supervisory control in matters specifically regulated by law. Reliance is placed on a case reported as “Mst. FAIZ MAI Versus HOME SECRETARY and others” (PLD 2017 Lahore 896).

8. Thus, it can safely be concluded that the Constitution of the Islamic Republic of Pakistan 1973 recognizes both the freedom of assembly (Article 16) and the freedom to profess religion and manage religious institutions (Article 20). These rights, however, are subject to law, public order or morality respectively. Assemblies or processions on public roads, streets, or thoroughfares for lawful purposes fall under the supervision of the district police. The head of police, upon being satisfied that an uncontrolled assembly or procession may cause a breach of peace, may require organizers to obtain a licence, granted subject to restrictions he deems necessary. Any procession violating licence conditions or disobeying lawful orders shall be deemed an unlawful assembly. To ensure security, the head of police may, with approval of the Provincial Police Officer or Capital City Police Officer, deploy additional police under Article 30 of the Police Order 2002. Parallel regulation exists under Section 16 of the Punjab Civil Administration Act 2017, which mandates prior written permission from the Deputy Commissioner for any public meeting, procession, or gathering. The Deputy Commissioner, in consultation with the district police, may grant permission subject to conditions or defer the application with recorded reasons. He may also requisition assistance from the local government to facilitate arrangements. Further, the Punjab

Special Protection Unit Act 2016 provides for a dedicated police unit to safeguard foreigners, important persons, and notified premises. The Unit, administered by a Deputy Inspector General under the supervision of the Provincial Police Officer, ensures specialized protection as directed.

9. It has been contended that licences for assemblies or processions are also issued by the Home Department, based on recommendations of district intelligence committees monitoring terrorism threats and law and order concerns. However, these committees do not figure in the statutory framework governing police and civil administration. The Police Order, 2002 vests administrative autonomy in the Provincial Police Officer, thereby limiting the role of the Home Department in licensing. In practice, while the district police head issues licences, permission must simultaneously be sought from the Deputy Commissioner, who may consult both police and local government before granting approval under Section 16 of the Punjab Civil Administration Act 2017.

10. The freedom of assembly under Article 16 of the Constitution, when read alongside the freedom to profess, practice, and manage religion under Article 20, occupies a distinct and exalted paradigm. Unlike assemblies convened for social, political, or economic purposes, religious gatherings, particularly those rooted in mourning and remembrance, demand a broader, more welcoming approach. Article 16 guarantees every citizen the right to assemble peacefully and without arms, subject to reasonable restrictions in the interest of public order. Article 20, meanwhile, secures the right to profess, practice, and propagate religion, and to establish and manage religious institutions, subject to law, public order, and morality. Though these rights are interrelated, their application to the Shia community's mourning rituals during Muharram cannot be confined within ordinary limits. Reliance in this respect is placed

on a case reported as “Malik GHULAM YUSAF versus DISTRICT MAGISTRATE, ATTOCK” (1995 MLD 1510).

11. The tragedy of Karbala, the tyranny unleashed upon Hazrat Imam Hussain (Alayhissalam) and the martyrdom of his family, is not a mere historical episode but a defining moment in the moral consciousness of Islam. It reverberates across centuries, piercing the hearts of generations who continue to feel the pain of the Prophet’s beloved household. To impose restrictions on assemblies convened to honor this sacrifice would be unjust, for these gatherings are not sectarian indulgences but universal reminders of truth, justice, and resistance against oppression. Hazrat Imam Hussain’s stand was not for personal gain, nor for one sect alone, but for the preservation of humanity’s moral compass, that truth must prevail even at the cost of life itself. Thus, while the State may regulate assemblies for worldly purposes, it must adopt a participatory spirit in facilitating mourning rituals. Every citizen who wishes to hold a Majlis within his home or lead a procession in remembrance of Karbala should be embraced, regardless of means or resources. Public servants are not merely regulators but custodians of this sacred duty, expected to support and facilitate rather than restrict. Reliance in this respect is placed on cases reported as “Syed SARFRAZ HUSSAIN BUKHARI versus DISTRICT MAGISTRATE, KASUR AND OTHERS” (PLD 1983 Supreme Court 172); “Syed MANZOOR HUSSAIN SHAH Versus GOVERNMENT OF N.W.F.P. through Collector, Dera Ismail Khan and others” (2005 SCMR 995); “MUHAMMAD HUSSAIN BHATTI versus DISTRICT MAGISTRATE, GUJRAT” (1985 P Cr. L J 301). These gatherings are not ornamental displays but illuminations of humanity, reminding us of the Qur’anic injunction to speak truth before tyranny and of Allama Iqbal’s timeless verse:

خدا نے آج تک اس قوم کی حالت نہیں بدلی

نہ ہو جس کو خیال آپ اپنی حالت کے بدلنے کا

Accordingly, it is directed that District Police Heads and Deputy Commissioners shall work in close collaboration to ensure the peaceful observance of Youm-e-Ashura. Licensing and permissions shall commence at least one month prior to Muharram, with public notices issued through print, electronic, and social media. Citizens shall be invited to register their intent, and discussions shall be convened to harmonize arrangements, minimize costs, and foster inclusivity. In this way, the State shall not merely regulate but stand shoulder to shoulder with its people, honoring the eternal struggle of Hazrat Imam Hussain, a struggle that continues to inspire humanity to rise against injustice and uphold the light of truth.

12. With these observations, this writ petition is **allowed**. The City Police Officer, Multan on the application of the petitioner to be filed afresh, register the procession by imposing reasonable restrictions in order to avert any threat to the life and property of the participants as well as the general public. At the same time, petitioner shall be entitled to lead the procession on 8th Muharram as per previous schedule to conduct religious affairs.

13. These constitute the detailed reasons for the short order passed on 19.06.2026 in the above writ petition.

(MUHAMMAD AMJAD RAFIQ)
JUDGE

Approved For Reporting

Judge

Signed on 24.06.2026

*M. Umar**